No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 3263, of April 28, 1920 temporarily withdrawing the E½ and SW¼ sec. 19, T. 24 N., R. 119 W., 6th P. M., Wyoming, pending a determination as to what portion thereof, if any, would be needed as a landing field for aeroplanes in connection with national forest fire patrol purposes, is hereby revoked.

The lands are nearly level and semi-arid in character, supporting native desert vegetation. They are within Wyoming Grazing District No. 4.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 21, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 21, 1947, to July 21, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 1, 1947, to April 21, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 21, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 21, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from July 1, 1947, to July 21, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 21, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Evanston, Wyoming, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Evanston, Wyoming.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

FEBRUARY 17, 1947.

[F. R. Doc. 47–1799; Filed, Feb. 26, 1947; 8:48 a. m.]

[Public Land Order 353 [1]]

ALASKA

WITHDRAWING PUBLIC LANDS FOR PROTECTION OF WATER SUPPLY FOR CITY OF FAIRBANKS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands in the following-described area are hereby withdrawn from all forms of appropriations under the public-land laws, including the mining and mineral-leasing laws, and reserved under the jurisdiction of the Department of the Interior for the protection of the water supply for the City of Fairbanks:

FAIRBANKS MERIDIAN

T. 1 S., R. 1 W.,
sec. 26, E½NW¼ and NE¼SW¼.

The area described contains 120 acres.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

FEBRUARY 18, 1947.

[F. R. Doc. 47–1801; Filed, Feb. 26, 1947; 8:47 a. m.]

[Public Land Order 352]

MONTANA

REVOKING IN PART PUBLIC LAND ORDER 83 OF JANUARY 23, 1943, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT AS MANEUVER AREA

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 83 of January 23, 1943, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing public lands for the use of the War Department as a maneuver area, which was revoked in part by Public Land Order No. 223 of April 10, 1944, is hereby revoked so far as it affects the hereinafter-described public lands.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 83 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 21, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 21, 1947, to July 21, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlements rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 1, 1947, to April 21, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 21, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 21, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from July 1, 1947, to July 21, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 21, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satis-

[1] For notice for filing objections to this order, see Interior Department, Bureau of Land Management, in Notices section, *infra.*

factory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Great Falls, Montana, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Great Falls, Montana.

The lands affected by this order are described as follows:

PRINCIPAL MERIDIAN

T. 10 N., R. 4 W.,
sec. 17, lots 3, 6, 7, 8, 14, 15 and 16.

The areas described aggregate 31.10 acres.

The lands are rolling in topography, lying at an elevation of approximately 4,100 feet.

Lot 4, containing 3.21 acres, was erroneously described as public land in Public Land Order No. 83. It was patented June 28, 1923.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

FEBRUARY 17, 1947.

[F. R. Doc. 47-1800; Filed, Feb. 26, 1947; 8:47 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 260, Amdt. 6]

PART 95—CAR SERVICE

SALTING OF ICE ON CARS OF CITRUS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 21st day of February A. D. 1947.

Upon further consideration of the provisions of Service Order No. 260 (9 F. R. 14547), as amended (10 F. R. 4818; 11 F. R. 8452, 13639; 12 F. R. 48, 128), and good cause appearing therefor: It is ordered, that:

Section 95.260 *Salting of ice on cars of citrus* of Service Order No. 260, as amended, be, and it is hereby, further amended by adding the following exception to paragraph (a) thereof:

Exception. The provisions of this order, during the effectiveness of this amendment, shall not apply to the salting, at regular icing stations en route, with not to exceed three percent (3%) salt, of ice in the bunkers of refrigerator cars, shipped from any origin in the State of Florida, loaded with straight carloads of tangerines, or loaded with mixed carloads of tangerines and other citrus fruit providing tangerines comprise fifty percent (50%) or more of the lading.

Effective date. This amendment shall become effective at 12:01 a. m., February 24, 1947.

Expiration date. This amendment shall expire at 11:59 p. m., May 15, 1947.

It is further ordered, that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, Sec. 402, 41 Stat. 476, Sec. 4, 54 Stat. 901, 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-1807; Filed, Feb. 26, 1947; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 941]

[Docket No. AO-101-A6]

HANDLING OF MILK IN CHICAGO, ILL., MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVELY APPROVED MARKETING AGREEMENT

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and in accordance with the applicable rules of practice and procedure, as amended (7 CFR, Cum. Supp. 900.1 et seq.; 10 F. R. 11971, 11 F. R. 7737, 12 F. R. 1159), notice is hereby given of a public hearing to be held at the Hotel Stevens, Chicago, Illinois, beginning at 10:00 a. m., c. s. t., March 5, 1947, for the purpose of receiving evidence with respect to proposed amendments to the tentatively approved marketing agreement, as amended, and the order, as amended, regulating the handling of milk in the Chicago, Illinois, milk marketing area (11 F. R. 9606). These proposed amendments have not received the approval of the Secretary of Agriculture.

The following amendments have been proposed:

By the Pure Milk Association:

1. Delete § 941.1 (e) and substitute therefor the following:

(e) "Approved plant" means any plant which is approved by any health authority for the receiving of milk which may be disposed of as Class I milk, as defined in § 941.4, in the marketing area, except if such plant has been suspended as a pool plant pursuant to § 941.6.

2. Add at the end of § 941.1 (g) the following:

(g) This definition shall not include any person who sells the larger percentage of Class I milk handled by him in a marketing area under any other milk marketing agreement or order issued under the act where such person is a handler subject to such other milk marketing agreement or order.

By the Dairy Branch, Production and Marketing Administration:

3. Amend § 941.4 (a) (2) by adding after the words "fluid cream" the following: "frozen cream, other cream frozen, plastic cream, or any cream product similar to the products here named,"

4. Amend § 941.4 (a) (2) by including the counties of Stark, Marshall, Woodford, Livingston, Ford, and Iroquois in the State of Illinois, and the counties of Benton, White, Cass, Miami, Howard, Carroll, Tippecanoe, Tipton, Clinton, Fountain, Warren, Parke, Vermilion, Vigo, and Sullivan in the State of Indiana in the "surplus milk manufacturing area."

5. Amend § 941.4 (a) (3) by adding to such paragraph the following:

Such utilization shall be substantiated by daily production records:

(i) If the unapproved plant makes available to the market administrator adequate daily records of its total milk receipts and the utilization or disposition thereof, but intermingles its receipts of fluid milk or fluid cream from an approved plant with its other receipts and is therefore unable to account for the utilization of the receipts from an approved plant, such fluid milk shall be allocated on a daily basis as substantiated by production records to the amount of butterfat used in Class III milk products, in Class IV milk products, and in Class II milk products, respectively, and the balance, if any, shall be allocated to the amount of fluid milk in Class I milk products, and such fluid cream shall be allocated on a daily basis as substantiated by production records to the amount of butterfat used in Class IV milk products, in Class III milk products, in Class II milk products, and in Class I milk products, respectively;

(ii) If the unapproved plant does not make available to the market administrator adequate daily records of its total milk receipts and the utilization or dis-